

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, AUGUST 13, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**MONTEZUMA LODGE NO. 172, I.O.O.F. OF CALIFORNIA v. LEWIS, et al.
Case No. cu23-05966**

Hearing on Determination of Attorneys Fees and Costs

TENTATIVE RULING

Plaintiff was given the opportunity to respond to the amount of fees and costs claimed to have been incurred on the since-vacated motion for judgment on the pleadings. However, the opposition by Plaintiff did not challenge those amounts. Thus, the court confirms that Plaintiff must pay Defendant the amount of \$9,375.00, within 30 days of this ruling, or the court's July 9 order withdrawing the deemed admissions will be vacated, and Defendant's motion for judgment on the pleadings reset for hearing on an expedited basis.

Plaintiff's opposition referenced a possible claim by Defendant that the court's July 9 ruling mistakenly vacated the motion for judgment on the pleadings. This was not a mistake on the part of the court, and the time for challenging its ruling has long passed. C.C.P. §1008(a). Should Defendant make any request to reset hearing for that vacated motion for any reason other than Plaintiff's failure to timely pay these sanctions, the court may reconsider this order for sanctions and reduce if not vacate entirely the amount ordered now.

WELLS FARGO BANK, N.A. v. ANDREW CRONIS
Case No. CL24-08776

Motion to Vacate Dismissal Under CCP § 664.6 and Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

The court denied this very same motion on May 21, 2026 without prejudice to renew on the basis that it was not personally served on Defendant CRONIS who has never appeared in this action. There is no change of circumstances and no good cause to refile the same motion with the same procedural challenges.

The following is the ruling issued May 21, 2026:

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Defendant never appeared in this action until an “appearance” via a stipulation filed by Plaintiff and for which Plaintiff paid the first appearance fee. The stipulation contains no information regarding Defendant’s contact information including telephone, email or address.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) Defendant never filed a responsive pleading in this action identifying an address of record. The court is not satisfied that the mailing address Plaintiff used for service of notice of motion provides notice and/or satisfies due process.

The motion for entry of judgment is DENIED WITHOUT PREJUDICE.

There is no good cause to refile a motion that was previously denied with no change in circumstances.

An Order to Show Cause shall issue to the managing partner(s) of Collection at Law, Inc. APLC why sanctions in the amount of \$1,000 should not be imposed for the frivolous refiling of a previously denied motion with no change in circumstances. Personal appearance of a managing partner of Collection at Law. Inc. is required. No remote appearances are authorized. A response to the Order to Show Cause shall be filed 15 calendar days prior to the hearing.

The hearing on the ORDER TO SHOW CAUSE TO PLAINTIFF’S COUNSEL is set on **October 15, 2026 at 8:30 a.m. in Department 8.**

CAPITAL ONE, NA v. ANTONIO GALLEGOS
Case No. CL25-04170

Motion to Deem Matters Admitted

TENTATIVE RULING:

Plaintiff's unopposed Motion to Deem Matters Admitted by Defendant ANTONIO GALLEGOS is GRANTED. Defendant GALLEGOS shall be deemed to have admitted all propounded Requests for Admission (Set One).

The proposed order lodged with the court will be processed forthwith.

LADY BENJAMIN P.D. CANNON, A.S.C.E. v. DAVID, et al.
Case No. CU25-01448

Demurrer by Defendants STEPHEN DAVID and MARK MITCHELL to Plaintiff's Second Amended Complaint

TENTATIVE RULING

STEPHEN F. DAVID ("DAVID") and MARK MITCHELL ("MITCHELL") demur to the second amended complaint ("2AC") including the breach of contract cause of action against DAVID; the fraud-based causes of action alleged against both DAVID and MITCHELL; and the unfair business practices cause of action alleged against both DAVID and MITCHELL. As to the fraud-based causes of action and unfair business practices cause of action, the demurrer is SUSTAINED. As to the breach of contract cause of action, the demurrer is OVERRULED.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Requests for Judicial Notice. On demurrer, the court is limited to considering the face of the complaint and any matters of which it can properly take judicial notice. (CCP § 430.30, subd. (a); 1 Edmon & Karnow (Weil & Brown 2025), [The Rutter Group 2025] Civil Procedure Before Trial, § 7:8, p. 6.) A court may take judicial notice of the contents

of its own files and orders. (Evid. Code, § 452.) A court cannot take judicial notice of factual findings in a different court's opinion. (*Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 148 [not proper to take judicial notice of factual finding by different court which is different than judicial notice to determine whether res judicata and collateral estoppel apply].) Defendants' requests for judicial notice far exceed the court's authority and Defendants' moving papers contain numerous factual arguments which the court cannot and does not consider.

Breach of Contract. The elements of a cause of action for breach of contract include the existence of a contract, the plaintiff's performance or excuse for nonperformance, the defendant's breach, and resulting damages to the plaintiff. (*J.B.B. Investment Partners Ltd. v. Fair* (2019) 37 Cal.App.5th 1, 9.)

Defendants concede that the bill of sale could be considered part of the contract between Plaintiff and DAVID. That bill of sale, signed by DAVID, stated that the Vessel was being "sold free and clear of all liens, mortgages, and other encumbrances of any kind or nature."

In addition to the bill of sale, the 2AC includes allegations about the admiralty lien asserted by the Marina after the Vessel's sale [¶29], which the federal court's order in the admiralty lien case found to encompass necessities provided to the vessel both before and after the sale. [Defendants' request for judicial notice, Exhibit 5].

The allegations suffice to meet the minimum necessary to allege a breach of contract and provide notice to DAVID. The court therefore overrules the demurrer by DAVID to the breach of contract cause of action.

Fraudulent Concealment and Negligent Misrepresentation As to the fraud-based causes of action, each of the elements of such causes of action must be alleged with specificity including who said what to whom at what time. (*Morgan v. AT&T Wireless Services, Inc.* (2009) 177 Cal.App.4th 1235, 1261-1262.)

The elements of fraudulent concealment include knowledge by the defendant of a material fact not they did not disclose to the plaintiff, causing the plaintiff to lose something in reasonable reliance. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 868.)

Negligent misrepresentation consists of some of the same elements, although requiring an express representation of a fact that was not true, by one who had no reasonable ground for believing the representation to be true. (See CACI 1903; *Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 781.)

In general, the elements of any fraud-based cause of action must be pled with specificity.

Fraud allegations “ ‘involve a serious attack on character’ ” and therefore are pleaded with specificity. (*Hills Trans. Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal. App.2d 702, 707 [72 Cal. Rptr. 441].) General and conclusory allegations are insufficient. (Lazar, at p. 645.) The particularity requirement demands that a plaintiff plead facts which “ “show how, when, where, to whom, and by what means the representations were tendered.” ” (Ibid.) *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1469.

Other than contending that an unresolved status of the UD action was not disclosed prior to the sale, and alleging MITCHELL expressed his belief that the Marina would give LADY BENJAMIN 45-60 days to move the vessel and possibly more if she was showing progress, Plaintiff’s 2AC contains no additional specific allegations against either DAVID or MITCHELL to support fraud or negligent misrepresentation. (2AC ¶¶ 26, 38, 39.)

The court takes judicial notice of its own minute order dated January 24, 2023, reflecting recitation of a UD settlement agreement between DAVID and Marina and a stipulated judgment filed February 1, 2023. (FCM178794.) Plaintiff’s 2AC also alleges this settlement and payment and that DAVID transferred title to Plaintiff on January 27, 2023. (2AC ¶¶ 23, 24.) Further, Plaintiff alleges that MITCHELL spoke with Mark Cefalu (the Marina’s attorney) and requested 60 days to permit Plaintiff time to remove the vessel to which Cefalu agreed. (2AC ¶ 21.)

However, the 2AC does not allege with specificity that DAVID and/or MITCHELL had reason to know that the Marina would later assert an admiralty lien for necessities provided for the vessel for a time period before and after the transfer of title of the vessel to Plaintiff.

As to negligent misrepresentation, paragraphs 44 and 45 of the second amended complaint alleged “Defendants negligently made false representations regarding the status of the UD Action and Plaintiff’s rights to possession of the vessel”, and “Defendants owed a duty of care to Plaintiff to provide accurate information regarding the vessel’s title and possession status.”

Nothing about the state UD action impacted Plaintiff’s ownership or possession of the vessel. The Marina’s federal admiralty claim is not a state UD matter. Ultimately, the arrest of the vessel based upon maritime law that permits a secret lien to exist appears to have resulted in Plaintiff’s deprivation of the vessel.

Neither of the fraud-based causes of action contains factual allegations with the specificity required by law.

The court therefore sustains the demurrer by DAVID and MITCHELL to the cause of action for fraudulent concealment and negligent misrepresentation.

Unfair Competition.

Business & Professions Code §17200 states:

As used in this chapter, unfair competition shall mean and include any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising and any act prohibited by Chapter 1 (commencing with Section 17500) of Part 3 of Division 7 of the Business and Professions Code.

While this cause of action can apply to a case involving a breach of contract, it does not apply absent conduct that would qualify as unfair, unlawful or fraudulent. (*Puentes v. Wells Fargo Home Mortgage, Inc.* (2008) 160 Cal. App. 4th 638, 645 [“A breach of contract may form the predicate for Section 17200 claims, provided it also constitutes conduct that is ‘unlawful, or unfair, or fraudulent’”].) A seller who warrants the absence of liens or encumbrances but has no knowledge of a secret maritime lien would not appear to qualify.

In terms of derivative claims, without allegations beyond breach of contract surviving this demurrer, there is no basis for alleging an unfair business practices cause of action.

The court therefore sustains the demurrer of DAVID and MITCHELL to this cause of action.

Further Amendment This is the third demurrer to Plaintiff’s various complaints. This suit was filed February 13, 2025. Plaintiff has had ample opportunity to conduct discovery and identify specific facts, if any exist, to allege with specificity the who, how, what and when necessary to state the fraud and negligent misrepresentation claims as to Defendants. With no showing offered by Plaintiff’s opposition as to how the complaint could be amended, the court sustains the demurrer by DAVID as to all causes of action except breach of contract and to MITCHELL without leave to amend.

Under CRC 3.1320(g), DAVID has 10 days to file an answer to the sole remaining cause of action alleged against him in the second amended complaint, the first cause of action for breach of contract.

ALDEN S. DULAY, CHEREE MCKELVEY, ROMAN BASS and NENITA L. CADUNGUG, individually and on behalf of others similarly situated v. TRAVIS CREDIT UNION Solano Case No. FCS058361

BREANNA BOX, individually and on behalf of others similarly situated v. TRAVIS CREDIT UNION, Contra Costa C22-01202

Coordinated Proceedings JCCP 5254

Motion for Preliminary Approval of Class Action Settlement

TENTATIVE RULING:

Parties to appear.

Plaintiffs ALDEN S. DULAY, CHEREE MCKELVEY, ROMAN BASS, NENITA CADUNGUG and BREANNA BOX ("Plaintiffs") move for preliminary approval of a proposed class action and PAGA settlement.

The Solano County case was coordinated with the Contra Costa County case and assigned to Solano County August 10, 2023.

Overview of Preliminary Approval of Class Action and PAGA Settlement

Before granting final approval of class settlements, courts grant preliminary approval of the class settlement, grant conditional certification of the class, approve the forms and methods of class notice, and set a final hearing.

Class actions are authorized under Code Civ. Proc., § 382, whenever the question in a case is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court. Certification is a procedure by which the court determines whether a plaintiff is a proper class representative and the action can proceed to trial as a class action. To obtain class certification, the proposed class representative(s) must show (1) an ascertainable class of sufficient size as to justify class action treatment ("numerosity") and (2) a well-defined community of interest in questions of fact and law. (*Vasquez v. Superior Court* (1971) 4 Cal.3d 800, 809.) The factors the court considers in determining the community of interest element are (1) the predominance of common issues, (2) the typicality of the claims of the proposed class members, and (3) the ability of the proposed class representative to adequately represent the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

In determining whether a class settlement is fair, adequate and reasonable, the court considers relevant factors, including: (1) the strength of plaintiffs' case; (2) the risk, expense, complexity and likely duration of further litigation; (3) the risk of maintaining class action status through trial; (4) the amount offered in settlement; (5) the extent of discovery completed and the stage of the proceedings; (6) the experience and views of counsel; (7) the presence of a governmental participant; and (8) the reaction of the class members to the proposed settlement. The list of factors is not exclusive, and the court is free to engage in a balancing and weighing of factors depending on the circumstances of each case.

Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement and to ensure the absence of fraud, overreaching or collusion between the negotiating parties, and that the settlement, taken as a whole, is fair,

reasonable and adequate to all concerned. The court uniquely serves as the gatekeeper to protect the interests of the putative class and PAGA group.

The burden is on the proponent of the settlement to show that it is fair and reasonable. However, a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.

(See *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 244-45.)

Proposed Settlement

This action alleging Labor Code violations involving wage and hour matters, failure to pay minimum wages, reimburse business expenses, failure to provide appropriate meal periods, rest breaks and wage statements and unfair business practices was filed on June 2, 2022. A First-Amended Complaint was filed on December 28, 2023, which added a PAGA cause of action. A Second-Amended Complaint was filed by stipulation on October 22, 2025.

The parties engaged in mediation with Michael Loeb, an experienced wage and hour class action mediator. Months later the parties reached settlement.

Plaintiffs seek approval and certification of a class action and PAGA settlement representing 1236 putative class members of non-exempt employees in the gross amount of \$1,626,000. \$100,000 of this amount is assigned to the PAGA claims with 75% (\$75,000) allocated to LWDA and 25% (\$25,000) to aggrieved employees. For tax purposes 20% will be allocated to wages with taxes to be paid by Defendant in addition to the gross settlement funds, and 80% to penalties and interest. An escalator clause to address workweeks is included in the settlement.

Undeliverable funds will be paid to the Travis Credit Union Community Financial Wellness Fund/Travis Credit Union Foundation.

Class members are defined as all persons employed in California as non-exempt employees between November 16, 2019 and November 5, 2025. Aggrieved employees are persons employed in California and classified as non-exempt between March 7, 2022 and November 5, 2025. Plaintiffs contend that Defendant's wage and hour policies were applied uniformly to the non-exempt employees despite different classifications of employees within the class.

The average gross individual settlement for each class member is \$698.75. In addition, each of the eligible aggrieved employees will receive a fraction of the 25% of the PAGA settlement.

Plaintiffs' counsel attests to being experienced in class action litigation and consulted experts in evaluating a potential recovery. The pleadings establish the following analysis:

Claim	Best Case	Risk Analysis	Realistic Exposure
Reimbursement	\$1,621,450	20%/20%	\$64,858
Underpaid wages	\$3,191,927	30%/20%	\$191,516
Meal Period	\$846,270	30%/20%	\$50,776
Rest periods	\$18,660,900	20%/10%	\$373,218
Unpaid Overtime	\$87,187	50%/40%	\$17,437
Waiting Time	\$3,500,000	30%/20%	\$210,00
Wage Statement	\$2,800,000	30%/20%	\$168,000
PAGA	\$5,216,900	Recovery doubtful	\$100,000

Settlement Administrator

The fee of up to \$13,250 for ILYN Group, Inc. is reasonable.

Incentive Payments

Incentive payments to class representatives "must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit." (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1395.) The court must also consider the "risk to the class representative in commencing suit" and any "notoriety and personal difficulties" he or she encounters as a result of the litigation. (*Id.* at 1394.)

The court is unlikely to approve \$10,000 for each representative which is on the high side, but routinely approves payments ranging between \$5,000 and \$7,500 depending upon efforts.

Attorneys Fees and Costs

As to attorneys' fees, calculations using 25%, 30% and 33% of the gross settlement should be included in the final approval moving papers. The court appreciates efforts of class counsel but also wants to ensure that members of the class receive benefits.

Notice

Notice should include accurate information on how to access the court's website and case file. Referencing JCCP 5254 will not work. In addition, please include ability to appear via Zoom and explain that the Zoom Credentials for Dept. 8 are on the court's website.

The ability to opt out via email should be included.

Ruling

The court has the following questions:

- (1) How many proposed class members have arbitration agreements? Do the arbitration agreements have class action waivers?
- (2) No copy of the Breanna Box v. Travis Credit Union Contra Costa complaint is available to the court nor was a consolidated or coordinated complaint filed. Counsel for Breanna Box shall file a declaration which includes copies of the operative pleading and answer from the Contra Costa case.
- (3) What remaining claims are pending in Contra Costa involving representative Breanna Box? How is Breanna Box a proper representative given her separate pending claims and the general release?
- (4) How is Nenita Cadungug a proper representative given her agreement to arbitrate? Does Cadungug's arbitration agreement cover class actions and/or include a class action waiver?
- (5) How are employees who are members of the proposed class who have signed arbitration agreements proper members of the same class as employees who have not?
- (6) It appears from the settlement agreement that the parties intended to negotiate an exception to the arbitration agreement for class settlement but to have the arbitration agreement(s) remain in effect for all other claims brought by class members? What is the legal authority for this outcome? How can class counsel bind members of the class to this outcome? If we proceed, should the notice advise employees regarding a limited waiver of arbitration?
- (7) Costs of \$30,000 are higher than typical. Please explain.
- (8) Please explain why the foundation was selected and how it benefits employees rather than turning over any unclaimed funds to the state in the employee's actual name. The court understands that the identity of all members of the class or aggrieved persons are actually known to the parties.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca.gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002